

Garcia moves for entry of a judgment of dismissal under Code of Civil Procedure § 581(f)(1). Brosnan opposes the motion.

Dismissal under Code of Civil Procedure § 581 and Analysis

Code of Civil Procedure § 581(f) provides in relevant part, "The court may dismiss the complaint as to that defendant when: [¶] (1) Except where Section 597 applies, after a demurrer to the complaint is sustained without leave to amend and either party moves for dismissal." (Code Civ. Proc. § 581(f)(1).) The exception stated in that statute does not apply. Code of Civil Procedure § 597 applies where there is a trial of certain special defenses, which did not occur here as the complaint on its face shows it was filed after the two-year statute of limitations for a claim based on negligence had expired.

Plaintiff does not dispute or address the provisions of Code of Civil Procedure § 581(f)(1), which clearly apply here and warrant dismissal of the action with prejudice based on the order sustaining Garcia's demurrer with prejudice. Plaintiff instead raises issues regarding (1) his complaint to the California State Bar regarding his former counsel's alleged wrongful abandonment of him as a client, and (2) a prior complaint he filed against Garcia in this Court, Case No. MSC23-00498 ("Prior Action"), in which Plaintiff, a designated vexatious litigant, was ordered to obtain a prefiling order, and Brosnan concedes he did not obtain within the ten-day time frame stated by the Court in a Minute Order issued April 28, 2023. (Brosnan Opp. ¶¶ 16, 17.) He contends that attorney Troy represented him in the Prior Action and was identified as his counsel in the complaint initiating the Prior Action, and that the determination that he needed to obtain a prefiling order was in error. (Opp. ¶¶ 25-27.)

None of the issues raised in the opposition are properly before the Court on this motion. The only issue the Court can resolve on this motion is whether dismissal the grounds for entry of a judgment of dismissal of the claims against Garcia have been established under Code of Civil Procedure § 581(f)(1), and they undisputedly are satisfied.

Other remedies may be, or may have been, available to address the issues raised in Plaintiff's opposition regarding the Prior Action or the alleged acts or omissions of Plaintiff's former counsel. Indeed, Plaintiff's opposition shows that he has a complaint with the State Bar regarding his former counsel's conduct which appears to have been reopened in June 2025. Those issues, however, are not properly before the Court on the pending motion.

6. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: ABM GENERAL SERVICES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM General Services, Inc. For the reasons set forth, the hearing on the motion for summary judgment is **continued to 9:00 a.m. on August 7, 2026.**

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) Defendants ABM Industries, Inc. and ABM General Services, Inc. were added as Doe defendants in April 2024. (Voss Decl. Exhs. B, C.)

ABM General moves for summary judgment. Plaintiff opposes the motion. Plaintiff, however, has not complied with Rule 3.1350 in Plaintiff's Response ("Resp.") to Defendant ABM General Services, Inc.'s Separate Statement ("SS") of Undisputed Material Facts ("UMFs") for a number of reasons. The Court exercises its discretion to continue the hearing to provide Plaintiff an opportunity to cure the deficiencies in his Response to the SS. (*Parkview Villas Assn., Inc. v. State Farm Fire & Casualty Co.* (2005) 133 Cal.App.4th 1197, 1210-1216.)

Governing Law on Response to Moving Party's Separate Statement

Code of Civil Procedure section 437c(b) addresses the requirements for an opposition to a motion for summary judgment. With response to the opposition to the SS, the statute provides, "The opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed, indicating if the opposing party agrees or disagrees that those facts are undisputed. The statement also shall set forth plainly and concisely any other material facts the opposing party contends are disputed. Each material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence. Failure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court's discretion, for granting the motion. (Code Civ. Proc. § 437c(b)(3) [emphasis added].)

In addition, Rule 3.1350 of the California Rules of Court elaborates on the form and content of the Response to the SS supporting the party's opposition to the motion. Among other things, Rule 3.1350(f) requires the Response to the SS to be "in the two-column format specified" in Rule 3.1350(h), a rule which provides

images of examples of the proper format. (Cal. R. Ct., Rules 3.1350(f) and (h).) Rule 3.1350(f) further provides that "[e]ach material fact claimed by the moving party to be undisputed must be set out verbatim on the left side of the page, below which must be set out the evidence said by the moving party to establish that fact, complete with the moving party's references to exhibits." (Cal. R. Ct., Rule 3.1350(f)(1) [emphasis added].)

When Plaintiff responds to a UMF in the Response to the SS, Rule 3.1350(f) also directs, "On the right side of the page, directly opposite the recitation of the moving party's statement of material facts and supporting evidence, the response must unequivocally state whether that fact is "disputed" or "undisputed." An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted. Citation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers." (Cal. R. Ct., Rule 3.1350(f)(2) [emphasis added].)

Deficiencies in Plaintiff's Response to the SS and Deposition Excerpts

The Court has compared the UMFs stated in the moving party's SS in support of the motion to the UMFs listed in Plaintiff's Response. The moving party's SS lists 28 UMFs; Plaintiff's Response lists 18 UMFs in the first column under the heading "Defendant ABM General's Undisputed Material Fact and Supporting Evidence" preceding a section titled "Plaintiff's Additional Material Facts." (Pl. Resp. pp. 2-4.) There is no explanation in the papers for the discrepancy. The 18 UMFs are not verbatim statements of ABM General's UMFS from the ABM General SS, and they do not set forth the evidence stated by ABM General establishing the fact stated. (Code Civ. Proc. § 437c(b)(3); Cal. R. Ct., Rule 3.1350(f)(1).) It is unclear to the Court what the source of the UMFs listed in Plaintiff's Response is, but in any event, the UMFs are not the UMFs stated in the filed SS in support of ABM General's motion.

Plaintiff lists the evidence Plaintiff contends supports Plaintiff's response to the UMF in a third column titled "Plaintiff's Supporting Evidence," notwithstanding that the Rule mandates a two-column format. (Cal. R. Ct., Rule 3.1350(f)(1).) Further, if a fact is undisputed, then for purposes of the motion, the fact is established; no additional evidence cited by Plaintiff needs to be offered or considered by the Court to establish an undisputed fact. (See, e.g., UMFs 1-3 listed as "undisputed" with Plaintiff's citation to Plaintiff's evidence in the third column that is different from the evidence offered the moving party to establish the fact]; *Myers v. Trendwest Resorts, Inc.* (2009) 178 Cal. App. 4th 735, 747 ["That Myers

focuses on facts set forth in the statement of undisputed facts rather than in the memorandum of points and authorities makes no difference. As a leading treatise explains, "The agreement in the separate statement that a fact is "undisputed" is a concession only for purposes of the summary judgment motion. It is not evidence (because not under oath or verified); nor is it a judicial admission.' [Citations omitted.] . . . [S]eparate statements of undisputed facts in support of a motion for summary judgment or adjudication make no binding judicial admissions. [Citations omitted.]".) Yet, for facts listed as undisputed, Plaintiff fails to include in the first column (or anywhere in the Response to the SS) the evidence the moving party cited to establish the UMF in the SS, and Plaintiff instead cites his own evidence in the third column.

As to those facts which Plaintiff's lists as disputed, in many instances the evidence Plaintiff cites in the (erroneous) third column does not contain proper citations to the evidence, or at least citations to the evidence that the Court can decipher or that is consistent. For example, in Plaintiff's Response to UMFs 1 and 2, Plaintiff refers in one instance to "Antioch Police Department Report No. 21-010311 (Exhibit J to Compendium)" but in the other to "Police Report: DiDomenico PMK Dep. 4/30/2026." There is no reference to the specific exhibit number or letter or where the document is located, i.e., in Plaintiff's compendium of evidence or as an exhibit to a declaration, or in evidence filed by the moving party. The general reference to the DiDomenico PMK Deposition of April 30, 2026 does not cite to any page or line number of the deposition or explain the connection between the police report cited and the deposition transcript cited. (Pl. Resp. to UMFs 1 and 2.) (*See also* Pl. Resp. to UMF 10.) (Cal. R. Ct., Rule 3.1350(f)(2).)

Other evidence citations refer to exhibits to the DiDomenico PMK deposition, but Exhibit I to Plaintiff's compendium of exhibits, which are the PMK deposition excerpts, does not have any exhibits attached. If the document referred to as an exhibit to the PMK deposition is attached separately as an exhibit to the compendium, the exhibit letter to the compendium is not identified. (*See, e.g.*, Pl. Resp. to UMFs 4-9.) (Cal. R. Ct., Rule 3.1350(f)(2).)

The portions of deposition transcript excerpts a party cites and relies on are required to be marked in brackets or highlighted. (Cal. R. Ct., Rule 3.1116(c) ["The relevant portion of any testimony in the deposition must be marked in a manner that calls attention to the testimony."].) The deposition excerpts attached as Exhibit I to Plaintiff's compendium are not bracketed or highlighted. (*Compare to* Voss Decl. Exhs. I and J.)

Opportunity to Cure and Continued Hearing

The Court considers Plaintiff's Response to the SS to have technical defects that warrant the Court exercising its discretion to provide Plaintiff an opportunity to correct the deficiencies highlighted above and file a compliant Response to the SS. (*Parkview Villas, supra*, 133 Cal.App.4th at 1210-1216.) Plaintiff shall file an amended Response to SS and Additional Material Facts in compliance with Code of Civil Procedure § 437c(b)(3) and California Rules of Court, Rule 3.1350(f) and (h). Plaintiff shall also file an amended compendium of exhibits with the deposition excerpts that Plaintiff cites and relies on highlighted in accordance with California Rules of Court, Rule 3.1116(c). Plaintiff shall file these amended opposition papers **by July 10, 2026**. The hearing shall be continued to **9:00 a.m. on August 7, 2026**. The moving party may, but is not required, to file a supplemental reply to address Plaintiff's amended response to the SS to the extent not otherwise covered in the reply on file. Any supplemental reply shall be filed **at least 11 calendar days prior to the continued hearing**.

7. 9:00 AM CASE NUMBER: C23-02738
CASE NAME: WILLIAM WALKER VS. GEORGE WHITEHEAD
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: ABM INDUSTRIES, INC
TENTATIVE RULING:

Before the Court is a motion for summary judgment by defendant ABM Industries, Inc. For the reasons set forth, the hearing on the motion for summary judgment is **continued to 9:00 a.m. on August 7, 2026**.

Background

Plaintiff William Walker alleges he was injured in a motor vehicle accident on December 16, 2021 when his vehicle was struck by a box truck being driven by George Whitehead. (Compl. ¶¶ 12, 14.) Defendants ABM Industries, Inc. and ABM General Services, Inc. were added as Doe defendants in April 2024. (Voss Decl. Exhs. B, C.)

ABM Industries moves for summary judgment. Plaintiff opposes the motion. Plaintiff, however, has not complied with Rule 3.1350 in Plaintiff's Response ("Resp.") to Defendant ABM Industries, Inc.'s Separate Statement ("SS") of Undisputed Material Facts ("UMFs") for a number of reasons. The Court exercises its discretion to continue the hearing to provide Plaintiff an opportunity to cure the deficiencies in his Response to the SS. (*Parkview Villas Assn., Inc. v. State Farm*